

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TPG PRESSURE, INC., *Complainant*

v.

OMNI LOGISTICS LLC AND EPIC FREIGHT SOLUTIONS LLC,
Respondents.

DOCKET NO. 22-31

Served: December 14, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING COMPLAINANT’S SECOND MOTION TO COMPEL

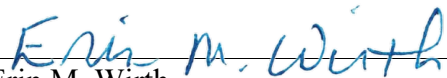
On December 6, 2023, Complainant TPG Pressure, Inc. filed a motion to compel production of documents (“Motion”). On December 13, 2023, Respondents Omni Logistics LLC and Epic Freight Solutions LLC filed a response in opposition to the motion (“Opposition”).

Complainant seeks an order compelling Respondents to produce text messages, including text SMS and WhatsApp messages between the parties. Motion at 5-6. Complainant states that the motion was filed because the discovery deadline is December 21, 2023, and even though “Respondents’ counsel did not object to the request, none of the documents at issue have been produced as of the date of this motion.” Motion at 1.

Respondents oppose the motion, asserting that Complainant’s motion “is premature, as Respondents already have indicated that they will produce responsive SMS and ‘WhatsApp’ messages;” that Complainant did not produce some of their documents until December 6, 2023; and the documents should be produced the week of December 11, 2023. Opposition at 1-2.

The Second Revised Scheduling Order stated: “The parties are expected to meet the deadlines below and should not expect any further extensions. Failure to meet deadlines may result in adverse consequences including the inability to present evidence.” The motion to compel was timely and ensured a response prior to the end of the discovery period. Respondents have not objected to providing the requested documents this week. Therefore, there is good cause to grant the motion and the documents must be provided by noon eastern time on December 18, 2023. If Respondents fail to produce the discovery, Complainant may argue in their January 25, 2024, brief regarding what sanctions would be appropriate.

Accordingly, Complainant’s motion is hereby **ORDERED** to be **GRANTED**. Any further motions or concerns must be raised and responded to in the parties’ briefs.


Erin M. Wirth
Chief Administrative Law Judge